

फार्म नं. 1

प्रथम सूचना प्रतिवेदन (धारा 173 बी एन एस एस के अन्तर्गत)

वि.पु.स्था.सी-

II

FIRST INFORMATION REPORT (Under Sec.173 BNSS)

S.P.E.C.-II

बुक नं.

Book No. 2024

क्रम सं.

Serial No. 33

1.	जिला:	थाना:	वर्ष:	प्र. सू. प्र. क्र.	दिनांक:
	District	PS:	Year	FIR No.	Date
	Chandigarh	CBI, ACB, CHG	2024	RC0052024A0033	22.12.2024

2. (1) विधान: धाराएं:
- Act PC Act, 1988
(as amended in 2018) Sections: 7A
- (2) विधान: धाराएं:
- Act - Sections: -
- (3) विधान: धाराएं:
- Act - Sections: -
- (4) अन्य विधान एवं धाराएं:
- Others Acts & Sections -
3. (क) प्रतीत अपराध:
- Suspected Offence : Demand of undue advantage.

(ख)	दिन	दिनांक	समय
(b)	Day	Date	Time

From 22.12.2024 onwards.

(ग)	थाने पर सूचना प्राप्त होने का	दिनांक
(c)	Information received at PS	Date
	CBI, ACB, Chandigarh	22.12.2024

कायमी अपराध :	दिनांक	समय
Entry No.	Date	Time
04	22.12.2024	01.30 PM

4.	सूचना का प्रकार :	लिखित/मौखिक
	Type of information	Written/Oral
	Complaint	Written

5. घटना का स्थान

Place of occurrence Chandigarh

(क) थाने से दिशा व दूरी :

(a) Direction & Distance from PS : -

बीट सं./Beat No.

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- (ख) पता:
(b) Addresses: **Chandigarh**

- (ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना-
(c) In case, outside the limit of this Police Station, then

पुलिस थाना का नाम
Name of PS -

जिला
District-

6. अभियोगी/सूचनाकर्ता
Complainant / Informant. Complainant

- (क) नाम
(a) Name **Sh. Bhupinder Kumar Sharma**
(ख) पिता/पति का नाम
(b) Father's/Husband's Name **S/o Late Sh. Bal Krishan Sharma**
(ग) जन्म तिथि (घ) राष्ट्रीयता
(c) Date of Birth - (d) Nationality **Indian**

- (ड.) पासपोर्ट नं.....जारी दिनांक.....जारी होने का स्थान
(e) Passport No. - Date of Issue - Place of issue-

- (च) व्यवसाय
(f) Profession **Chairman of Dev Bhumi Group of Institution, Chandpur, Una.**

- (छ) पता-
(g) Address – **H. No. 2631, Sector-70, Mohali**

7. ज्ञात/संदेही/अज्ञात/आरोपी का पूर्ण विवरण
Details of known/suspected/unknown accused with full particulars
(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
(Attached separate sheet, if necessary)

1. Mr. Rahim, Private Person.

8. अभियोगी/सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण:
Reasons for delay in reporting by the complainant/informant.
—
9. अपहृत/सम्बद्ध सम्पत्ति का पूर्ण विवरण (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)
—
10. अपहृत/सम्बद्ध सम्पत्ति का मूल्य:
Total value of property stolen
—
11. मर्ग/अकाल मृत्यु सूचना क्रमांक:
Inquest Report/U.D. Case No., if any,
—
12. प्रथम सूचना का विवरण:- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

Verification report dated 22.12.2024 of Sh. Sonal Mishra, Inspector, CBI, ACB, Chandigarh and complaint dated 22.12.2024 of Sh. Bhupinder Kumar Sharma S/o Late Sh. Bal Krishan Sharma R/o H. No. 2631, Sector-70, Mohali are attached as per Annexure "A" & "B" respectively. The allegations mentioned in the complaint were verified by Sh. Sonal Mishra, Inspector, CBI, ACB, Chandigarh and found to be true.

Hence, a Regular Case is registered and entrusted to Inspector Vikas Sharma, CBI, ACB, Chandigarh.

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13. कार्यवाही जो की गई: चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा(ओं) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है
Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2.

- (1) मामला पंजीकृत किया गया एवं जांच प्रारंभ हुआ अथवा
Registered the case and took up the investigation or
Took up for investigation

A regular case is registered.

- (2) निर्देशित (जांच अधिकारी का नाम) रैंक नं. जांच हेतु लिया गया
Directed (Name of IO) Rank No Took up for
Investigation

**Sh. Vikas Sharma, Inspector,
CBI, ACB, Chandigarh**

Yes

- (3) कारण से जांच के नामंजूर
Refused investigation due to
अथवा
or

- (4) पुलिस थाना को स्थानांतरित किया गया जिला क्षेत्राधिकार के आधार पर
Transferred to PS District on point of jurisdiction

अभियोगी/सूचनाकर्ता को प्र. सू. पत्र पढ़ाकर/पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वीकार किया।
इसकी एक प्रति अभियोगी/सूचनाकर्ता को निःशुल्क प्रदान की गई।
FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।
R.O.A.C.

14. अभियोगी/सूचनाकर्ता के हस्ताक्षर
Signature/Thumb Impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर

Signature of Officer in-charge
Police Station

नाम / Name

(Ashwin Shenvi) IPS

(पद) / Rank

Head of Branch, CBI,
DSPE, ACB, Chandigarh.

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the Court

(Ashwin Shenvi) IPS
Head of Branch, CBI,
DSPE, ACB, Chandigarh.

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)

Signature of recording Officer with date

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प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report -- **NIL**

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण:-

Physical features, deformities and other details of the suspect/accused: (if known/seen)

क्र.सं. S.N O.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date/Year of Birth	*शारीरिक क गठन (Built)	*ऊंचाई से. मी. में (Height) (in cms)	*वर्ण (Complexion)	*पहचान चिन्ह (Identification Mark/s)
1	2	3	4	5	6	7
-	-	-	-	-	-	-

विरूपता/विलक्षणता (Deformities/ peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress Habit/s)
8	9	10	11	12	13
-	-	-	-	-	-

भाषा / बोली (Language / Dialect)	स्थान / Place of				
	जले का निशान (Burn Mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जखम चिन्ह (Scar)	गोदना (Tattoo)
14	15	16	17	18	19
-	-	-	-	-	-

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

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CONFIDENTIALVERIFICATION REPORT DATED 22.12.2024

Today, i.e. on 22.12.2024 I received the directions of supervisory officer meet complainant Sh. Bhupinder Kumar Sharma in sector 43 Chandigarh to receive the complaint of demand of bribe by a public servant and to verify the same. I contacted the said complainant telephonically and he asked me to meet him in Hotel Metro sector 43 Chandigarh at around 10 AM. Accordingly I arranged one Sony Digital Voice Recorder from CBI Office along with 02 new memory cards for the purpose of verification. Thereafter, at about 10:00 AM, I alongwith Constable Rajwant Singh left CBI Office, Chandigarh in office vehicle and met Sh. Bhupinder Kumar Sharma in room no. 103 in Metro Hotel, Sector-43, Chandigarh. The complainant Sh. Bhupinder Kumar Sharma handed over to me a complaint dated 22.12.2024 written in English addressed to "The DIG, CBI, ACB, Chandigarh". I perused the said complaint and discussed the contents of the complaint. I discussed the contents of the complaint with the complainant Sh. Bhupinder Kumar Sharma S/o Late Sh. Bal Krishan Sharma r/o H. No. 2631, Sector-70, Mohali in detail. Sh. Bhupinder Kumar Sharma, complainant identified his signature on each page of the said complaint dated 22.12.2024 and also owned the contents of the complaint. I informed & discussed the facts with Supervisory Officer and he directed me to conduct the secret verification with regard to the complaint.

Contents of the complaint:

Sh. Bhupinder Kumar Sharma, complainant in his complaint dated 22.12.2024 has alleged that he is chairman of Dev Bhumi Group of institution Chandpur, Una. The complainant further informed in his complaint that a case has been registered at Enforcement Directorate (ED) office, Shimla (HP) against his institution and the case is being investigated by Sh. Vishal Deep (Assistant Director), ED, Shimla (HP). He further informed that on 16.12.2024, he appeared in the ED Office Shimla in connection with the investigation of the case. Subsequently, Sh. Neeraj and Sh. Sunil, both EO (Enforcement Officer) in ED Office, Shimla interrogated him. During interrogation, both Sh. Neeraj and Sh. Sunil demanded Rs. 30 lacs in lieu of not arresting him in the case and told him that they would inform him when and where to give the money. Thereafter, he was again interrogated by Sh. Vishal Deep, AD in his office chamber. During examination, Sh. Vishal Deep also demanded Rs. 55 lacs from the complainant for not arresting him in the case. Sh. Vishal Deep further directed him that one Mr. Rahim will call him on Sunday i.e. 22.12.2024 and he would collect demanded bribe amount of Rs. 55 lacs from him in Chandigarh.

As the Complainant Bhupinder Kumar Sharma did not want to give bribe amount demanded by suspect Sh. Vishal Deep, AD, ED, Shimla, hence Bhupinder

Kumar Sharma lodged the said complaint dated 22.12.2024 with CBI, requesting to take legal action against Sh. Vishal Deep, AD; Sh. Neeraj and Sh. Sunil, both EO in ED, Shimla for demanding bribe amount of Rs.55,00,000/- and Rs. 30,00,000/- from him.

Result of Verification

In order to further substantiate the allegation of demand of bribe, it was decided to wait for the call of suspect official or his tout (Mr. Rahim). I briefed the complainant and explained him the method of verification. Thereafter, a fresh memory card of 32 GB was inserted in Sony DVR and placed the same on person of complainant. It was explained to the complainant that the Sony DVR picks up the date and time randomly by default and prepares separate files at regular intervals.

Thereafter, at about 12:57 PM, complainant received a WhatsApp Audio Call from +1(416)771-7951. Caller identified himself as Rahim and informed that he had received mobile number of complainant (Bhupinder Kumar Sharma) from Shimla and asked him to come near Airport Road (near Zirakhpur) at around 4:30 to 5:00 PM. He also informed that he would again call him around 4:00 to 4:30 PM and he would confirm the location. Complainant Bhupinder Kumar Sharma requested caller Rahim that he wanted to talk with Sir (Vishal Deep) about the delivery, to which Rahim informed him that he would arrange the call.

After the call, Shri Rajwant Singh, Constable took out the Sony DVR from the person of the complainant and switched it off. From the said conversation, it was substantiated that one middleman Rahim was coming to collect bribe of Rs.55,00,000/- from the complainant Bhupinder Sharma on behalf of suspect Sh. Vishal Deep, AD.

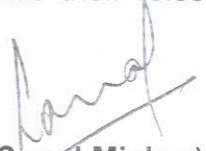
(Transcription of the call recording was prepared with the help of complainant and the same is enclosed with the report).

Place and time of delivery of bribe amount was not decided during WhatsApp Audio Call. Hence it was decided to further wait for another call of Mr. Rahim. Since the complainant did not have the mobile number of suspect Vishal Deep, it was not possible to further verify the allegation with respect to Vishal Deep.

Recommendation:

In the light of the above mentioned facts, it is recommended that a regular case may please be registered Under section 7A of PC Act, 1988 (as amended in 2018) against suspect Mr. Rahim for demanding bribe amount of Rs.55,00,000/- on behalf of Sh. Vishal Deep, AD, ED, Shimla. The role of Vishal Deep, AD will be looked into during the course of investigation.

Role of Sh. Neeraj and Sh. Sunil, both EO in ED, Shimla for demanding bribe amount of Rs. 30,00,000/- was not confirmed during verification hence their roles may be inquired into during the investigation.
Report submitted please.



(Sonal Mishra)

Inspector of Police,
CBI, ACB, Chandigarh.

~~W/HOB~~

RC be registered. Insp. Vikas to carry trap proceedings.

Pl p/e draft RC.

tsl
22/12/2024

Transcription of telephonic conversation held between Sh. Bhupinder Sharma (Complainant) and Sh. Rahim (Suspect) via Whatsapp during the verification on 22.12.2024.

C-complainant

S - Suspect

S - Hello

C - Hello

S - Haan ji, Sir..Rahim bol raha hoon...evening main milne bola hain aapko

C - Itaji...Itaji...Rahim ji...or

S - Haa to 5 bje k aas pass mile

C - Kha pe sir...

S - Yahan jo hai na apna....zirakpur...dera bassi wala area....jo airport road hai waha kahi...

C - Zirakpur airport k pass

S - Yahan jo airport road jo hai...

C - Haan ji..

S - wahan par...thik hai...

C - Acha

S - wahan par pahonch jayenge aap 4 - 4:30 baje aapko call karke bata doonge kha par aana hain...

C - Thik hai....wahan sir se phir ho jayegi baat yaa.....aap..

S - Haan...haan...koi dikkat nhi hain...

C - meri baat krwa doge aap...phir main aapko ...kyoki unhone....

S - baat.....haan bolo batao..

C - me jo ek dafa mere ko yeh ho jata ki thikright everything is ok...

S - Haan...haan..vo bhi karwa denge koi dikkat nhi hai...number vahi se aaya hai....aapko chinta mat karo...

C - Thik hain Sir....Thik hai...thank you...thank you...phir aap mere ko 4-4:30 baje call karonge...

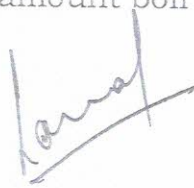


S - Haan...usi samay 4:30 baje k aas pass vaha khi pahunch jayi yega 4....5 baje ka hi time rakhenge...main aap ko 4-4:30 baje call kar dunga ki kha aana hai 4:30....phone paanch.....

C - unhone mere ko pachpan (55) amount boli thi....

S - thik...

C - thik hai..ok...

A handwritten signature in blue ink, appearing to be 'Kamal', with a long horizontal stroke extending to the right.

The DIG

CBI, ACB

Chandigarh

Sub

Demand of bribe of Rs fifty five lakh by
Shri Vishal Deep, Asst Director and Demand of bribe
of Rupees thirty lakh by Shri Neeraj and Serial Confes-
sion officers, E.D office Shimla

Sir

I Bhupinder Kumar Sharma Chairman of Dev Bhawan Group of
Institution Chandpur Una. A case is registered at E.D office
Shimla against my institution and being investigated by
Shri Vishal Deep (AD) Shimla on 16/12/24 I appeared
in the E.D office Shimla in the connection with the
investigation of the case. Where Shri Neeraj and Serial
met me and interrogated me. During interrogation
Both Demand Rupees thirty lakh in lieu of not arresting
me in the case. There after they told me that
they will inform me as to when and where
Rupees thirty lakh will be given by me.
after this Shri Vishal Deep called me in his
office chamber and interrogated me. During
investing, he also demanded Rupees fifty five
lakh for not arresting me in the case. He
further inform me that his person will call
me and said person will introduce him self
as Rahim. He further inform that Mr Rahim
will call me on Sunday i.e 22/12/24 and will collect
Demand both amount from me in Chandigarh

Bhupinder Kumar Sharma

22/12/24

①

Sir

I donot want to give the said bribe amount to
above E.D officer and request- you take
appropriate legal action against Shri Vishal Deep,
A.D, Shri Neeraj and Sumit, Both officers of
E.D, Shimla

BHUPINDER Kumar Sharma
S/o Shri Bal kishan Sharma
Rampal k Sharma

H.No-2631 | Sector-7D
Mohali

22/12/24